

CODE

Spending and contracts

Draft for member review | 29 September 2026

Plain language summary

\$10,000 or less needs two signatures. More than \$10,000 needs a council vote. More than \$25,000 also needs a public call for bids. One person must not commit more than \$10,000. The amounts are draft figures members can change before a vote.

Working draft. Amounts are proposals. Section 83 approval is separate if this is to be a money by-law. Laws cited were read on the Justice Canada consolidations current to 21 September 2026, the Charter and Constitution Act, 1982 consolidation, and the Treaty No. 8 text published by Crown-Indigenous Relations and Northern Affairs Canada. This draft is not a legal opinion.

Part 1. Purpose

1.1 This instrument sets who may commit the First Nation's money. The amounts are the amounts in this draft. They are not a statement of any current practice. Electors may change an amount under the amendment rule before they adopt the instrument.

1.2 If council also wants this text to be a money by-law, Indian Act section 83 applies, including Ministerial approval. Constitution section 5.4 is the path. Until that approval, this instrument binds office holders and employees as a condition of office.

Part 2. Thresholds

2.1 A commitment of money must meet this table before anyone signs. A commitment that skips a row is void. The person who signed must not sign another commitment until the void one is reversed or repaid. Repayment is due within 30 days.

Amount	Who must act before the commitment	Deadline
\$10,000 or less, inside the budget	The finance officer and one other person both sign. The person getting the money does not sign.	Same day. Both names on the voucher.
More than \$10,000, up to \$25,000	Those two signatures, plus a yes vote of council at a meeting with quorum, before anyone signs.	The vote is posted before anyone signs.
More than \$25,000	That council vote, plus a public call for bids posted for 14 days. The winner and the reason are posted.	Call for bids at least 14 days before signing. Winner posted within 14 days after signing.

2.2 A payment already listed, with its amount, in a budget the electors approved under section 2.3 may be paid without a second member vote. It still needs the signatures and, over \$10,000, the resolution. Over \$25,000 it still needs the posted invitation.

2.3 Electors may approve a full budget at a meeting called on 21 days' notice. Approval is a majority of votes cast, with at least 25 percent of electors voting. If that vote does not happen, section 2.1 still applies.

Part 3. Cards, family contracts, and tenders

3.1 There is no card in one person's name with a limit above \$10,000 in a month. The finance officer must reconcile every card within 15 days of the statement date. A charge with no receipt by that day is a debt of the cardholder, due within 30 days. The card is cancelled on day 16 if the reconciliation is late, and the appeal body is told the same day.

3.2 A contract with a councillor, the chief, an employee who can spend, or their immediate family is prohibited unless all of these happen first: the person leaves the decision, the appeal body approves the contract in writing, and the contract is posted for 14 days. If any step is skipped, the contract is void and payments must stop within 2 days. Sums already paid must be repaid within 30 days unless the appeal body finds the First Nation received fair value and the electors ratify the payment, by a majority of votes cast with at least 25 percent of electors voting, within 60 days.

3.3 Section 2.1 requires the written invitation for a contract over \$25,000. The appeal body may certify in writing, before signing, that there is only one practicable supplier, and must give reasons. A false certification removes the person who signed it from spending authority for the rest of the term.

Part 4. What members can see

4.1 The finance officer must post a contract list every month, within 15 days after month end: the other party, the amount, the budget line, and the resolution number. Names of members receiving a personal program payment are not posted. The amount and the program name are posted. A late list stops new commitments over \$10,000 until it is posted.

Part 5. Amendment

5.1 Council must not amend this spending instrument by resolution. A resolution that purports to amend it is void on the day it is signed. The appeal body must post that fact within 14 days.

5.2 An amendment passes only if a majority of the votes cast are yes and at least 25 percent of the electors cast a ballot.

5.3 The electoral officer must post the full proposed text at least 30 days before the vote. A vote held on shorter notice is void.

5.4 An amendment that removes or weakens a spending limit, a signature rule, a ban on voting on one's own pay, honorarium, travel, or contract, publication of financial statements or the remuneration schedule, a term limit, the fixed election date, the conflict register, a recusal rule, a right-to-information deadline, the whistleblower channel to the appeal body, the independence of the appeal body, the off-reserve councillor position, the rule that one person must not commit more than \$10,000, the open invitation for a contract over \$25,000, the public mandate and the quarterly report, the removal petition, or the rule that members, not council alone, amend a law does not pass under 5.2. It passes only if a majority of all electors vote yes. If that count is not met, the amendment is void.

5.5 The electoral officer must post the count within 3 days.

Part 6. Review and coming into force

6.1 The appeal body must review this spending instrument every 4 years, counted from the day it comes into force, and must post a written report within 60 days after that anniversary. The report does not amend this spending instrument.

6.2 Within 90 days of that report, council must either put a recommended amendment to the electors under Part 5, or post written reasons for not doing so. If council does neither, the appeal body must post that omission on day 91, and council honoraria stop on day 91 until one of those two things is done.

6.3 this spending instrument comes into force on the day after the electors approve it under Part 5. Until that day it is a draft. It does not repeal an election code, by-law, or policy already in force.

6.4 Where a law already in force sets its own replacement rule, this spending instrument replaces that law only if the electors also meet that rule. A lawyer should compare the two texts before the vote.

6.5 The records officer must keep the adopted text posted for at least 10 years. If it is not posted by day 10 after the vote, the records officer must post a written reason that day, and the appeal body must appoint a replacement records officer within a further 10 days.

This is not a legal opinion. A lawyer, or a person whose work is First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or another federal law is of no effect to the extent of the conflict. Police and Crown prosecution of a band by-law is uneven. The Minister's steps under the First Nations Financial Transparency Act, section 13, are discretionary. The consequences in this instrument are internal for that reason.